

AGREEMENT

This Agreement (hereinafter "Agreement") is made and entered by and between the Board of Education of the **Brecksville-Broadview Heights City School District** (the "District"), 6638 Mill Road, Brecksville, Ohio, and **Red Oak Behavioral Health** (the "Provider"), 611 W. Market Street, Akron, Ohio, with the District and the Provider being collectively referred to as the "Parties".

Background Information

- A. The Parties desire to enter into this Agreement to outline the terms and conditions under which the Provider will support the District's efforts to create a full continuum of behavioral health services designed to increase prosocial behaviors and address the social emotional and mental health needs of students, which are highly correlated with long-term student success (the "School-Based Health Care Program").
- B. The Parties further agree that the purpose of this Agreement is to assist both Parties in building a behavioral health care delivery model that is the best fit to address the needs of the school and surrounding community, and may be used to target additional resources that the Parties determine.
- C. As part of this Agreement, both Parties agree to share certain data with one another in order to evaluate the effectiveness of the School-Based Health Care Program.

Provisions

In consideration of the foregoing and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

- 1. Provider Responsibilities. The Provider agrees to the following:
 - a. Provider will support the District's School-Based Health Care Program by providing relevant training for parents and staff and mental health prevention, intervention, and/or treatment services on-premises in designated site(s).
 - b. Provider will ensure that the individuals providing the services are appropriately licensed, qualified, and trained.
 - c. Provider will ensure that the individuals providing services under the School-Based Health Care Program have undergone criminal background checks consistent with the governing law and the District's governing policy.

- d. Provider will ensure that its staff members who are on-site within the District comply with the District's governing code of conduct.
 - e. Provider will provide information and data needed to carry out the Agreement and data will be maintained in a manner compliant with HIPAA, FERPA, and R.C. 3319.321. Staff members will comply with such laws in the performance of their duties.
2. District Responsibilities. The District agrees to provide the following:
- a. The District shall primarily serve students and families through the Program.
 - b. District will provide, free of charge, safe and reasonable office space within the schools designated by the District for Provider use.
 - c. The District will allow the Provider to conduct voluntary screening to identify students in need of the support being provided by the Provider in the space utilized with the schools identified by the District.
3. Compensation. The District agrees to compensate Provider for non-billable services outlined in the attached Model Wellness and Student Success Proposal and delivered as part of the School-Based Health Care Program as follows:
- 2020-2021 School Year - \$149,500
2021-2022 School Year - \$158,200
2022-2023 School Year - \$157,180
- Notwithstanding the foregoing, this provision is not intended to prohibit the Provider from seeking appropriate compensation through insurance or Medicaid programs for eligible treatment services provided to participating students.
4. Termination.
- a. For Convenience: Either Party may terminate this Agreement, in whole or in part, at any time for any reason by providing 60 days written notice to the other Party
 - b. For Breach: If this MOU is breached, the non-breaching Party may suspend or terminate this MOU immediately upon written notice to the breaching Party. If the breach can be cured in the sole discretion of the non-breaching party, the non-breaching Party may provide notice in writing to the breaching Party of the nature of the breach and the steps needed to cure such breach. The breaching Party shall have thirty (30) days from the receipt of such notice to cure to the satisfaction of the non-breaching party. The breaching Party must provide the non-breaching Party evidence that it has sufficiently cured the breach.

5. Notice of Claims. Both Parties shall notify the other immediately upon notice of any pending actions or the commencement of any actions brought against the other Party whose outcome may affect the rights of the other Party granted under this Agreement.
6. Force Majeure. If because of force majeure either Party is unable, in whole or in part, to perform under this Agreement, this shall not be considered a breach of contract while the inability to perform continues. Rather, the Party shall remedy with all reasonable dispatch such cause preventing the other party from carrying out the obligations under this Agreement. Except as otherwise provided herein, neither Provider nor the District shall be liable to the other for any delay or failure of performance of any provisions contained herein, nor shall any such delay or failure of performance constitute default hereunder, to the extent that such delay or failure is caused by force majeure.
7. Confidentiality and Family Educational Rights and Privacy Act (FERPA).
 - a. Each of the School and the Provider shall comply with all applicable provisions of Ohio and federal laws including the Family Educational Rights and Privacy Act (hereinafter "FERPA") or its state equivalent. FERPA includes any amendments or other relevant provisions of federal law, as well as all requirements of Chapter 99 of Title 34 of the Code of Federal Regulations and R.C. 3319.321. Nothing in this Agreement shall be construed to allow either party to maintain, use, disclose, or share student information in a manner not allowed by either state or federal laws or regulations. Provider shall not, under any circumstance, redisclose personally identifiable student information to another party without first obtaining the prior written approval of the parent or guardian of the child and the District. As used herein, "confidential information" means all information provided in any form from one party to the other which is, by its nature, information that a prudent businessperson would maintain as confidential. "Personal information," as described in 1347.01(E) of the Ohio Revised Code, includes personally identifiable student information or educational records defined by FERPA.
 - b. Each party shall only use confidential information for purposes of completing the terms of this Agreement as set forth herein. Each party agrees to use reasonable efforts to safeguard confidential information. "Reasonable efforts" means efforts not less than those a party employs to protect its own confidential information and, in any event, efforts not less than those a prudent businessperson would take to protect his or her own confidential and proprietary information. No party shall, without the prior written approval of the other party, directly or indirectly, disclose confidential information to any person or business entity except its own employees and representatives, including attorneys, accountants, and financial advisors, on a need-to-know basis. Notwithstanding anything in this Agreement to the contrary, the District shall not be liable to Provider for breach in the event of a disclosure of information that Provider deems confidential pursuant to a public records request.

- c. If either Party experiences any breach of data security that exposes confidential information, that party shall bear all costs to notify every individual whose confidential information may have been compromised.
- 8. Confidentiality and the Health Insurance Portability and Accountability Act.
 - a. Provider and District shall comply with all applicable provisions of Ohio and federal laws including the Health Insurance Portability and Accountability Act (hereinafter "HIPAA") or its state equivalent. HIPAA includes any amendments or other relevant provisions of federal law, as well as all requirements of Chapters 160 through 164 of Title 45 of the Code of Federal Regulations. Nothing in this Agreement shall be construed to allow either party to maintain, use, disclose, or share protected health information ("PHI") in a manner not allowed by either state or federal laws or regulations.
 - b. As used herein, PHI means individually identifiable information including but not limited to the past, present or future physical or mental health or condition of an individual, provision of health care to an individual, or the past, present or future payment for health care provided to an individual, as more fully defined under 45 CFR 164.501 and any amendments thereto.
 - c. Each party shall use PHI only for the terms of this Agreement as set forth herein. Each party agrees to use reasonable efforts to safeguard PHI and shall conform with the Privacy and Security requirements under 45 CFR 165 and 45 CFR 164.
 - d. If either Party experiences any breach of data security that exposes confidential information, that party shall bear all costs to notify every individual whose confidential information may have been compromised.
- 9. Independent Contractor. It is expressly understood that Provider and District are contractors independent of one another, and that neither has the authority to bind the other to any third person or otherwise to act in any way as the representative of the other.
- 10. Adherence to State and Federal Laws, Regulations. Provider agrees to comply with all applicable federal, state, and local laws related to Provider's performance and obligations under this Agreement. Provider accepts full responsibility for payments of all unemployment compensation, insurance premiums, workers' compensation premiums, all income tax deductions, social security deductions, and all other taxes or payroll deductions required for all employees engaged by Provider in the performance of the requirements of this Agreement.
- 11. Governing Law. This Agreement shall be governed by the laws of the State of Ohio as to all matters, including but not limited to matters of validity, construction, effect and performance.
- 12. Entire Agreement. This Agreement, including its exhibits, appendices and any other documents referred to herein, constitute the complete understanding of the parties and supersede all other discussions, agreements, and understandings, either oral or

written, between the parties with respect to the subject matter hereof. This Agreement is not intended to modify the systemic responsibilities or authority delegated to the Parties within their organizations or under law and is not intended to override or amend any unrelated agreement the Parties may already have.

13. Severability. Whenever possible, each provision of this Agreement shall be interpreted in such a manner as to be effective and valid under applicable law, but if any provision is held to be prohibited by or invalid under applicable law, such provision shall be ineffective only to the extent of such prohibition or invalidity, without invalidating the remainder of such provisions of this Agreement.
14. Amendments or Modifications. Either party may at any time during the term of this Agreement request amendments or modifications. Requests for an amendment or modification of this Agreement shall be in writing and shall specify the requested changes and the justification for such changes. Should the Parties consent to modify the Agreement, then an amendment shall be drawn, approved, and executed in the same manner as the original agreement. The amendment must be signed by both parties to be effective.
15. Headings. Section headings contained in this Agreement are inserted for convenience only and shall not be deemed to be a part of this Agreement.
16. Assignment. Neither this Agreement nor any rights, duties, or obligations described herein shall be assigned or subcontracted by Provider without the prior express written consent of the District.
17. Electronic Signatures. Copies of signatures sent by facsimile transmission or provided electronically in portable document format ("PDF") shall be deemed to be originals for purposes of execution and proof of this Agreement.

The Parties have caused this Agreement to be executed by its authorized representatives on the last day set forth below.

RED OAK BEHAVIORAL HEALTH ("PROVIDER")

By: _____ Date: _____

Print Name: _____

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT ("DISTRICT")

By: _____ Date: _____

Print Name: _____